Cooperation rules for individual trainings

APEX PERFORMANCE · INDIVIDUAL COACHING

Service provider: Apex Performance, obrt za usluge (a Croatian sole proprietorship), owner Gabriel Mihelčić · registered office: Trtni 21, Mladenići, Viškovo · OIB (personal ID / tax number): 81729432712 · email: gabriel@apex-performance.fit

360,00 EUR	12	35 days	24 h
package price (30,00 EUR per training)	individual trainings of 60 minutes each	package validity from the first training	maximum response time in the chat

Article 1. Subject matter and contents of the package

These rules govern in-person individual trainings. The package, priced at **360,00 EUR**, comprises **12 individual trainings** under the professional guidance of a trainer; the accounting value of one session is **30,00 EUR**. A standard session lasts **60 minutes**. The provider is not registered for VAT, and therefore no VAT is charged in the price.

The price includes the use of the Apex app for trainings, bookings and communication for the duration of the package, as well as general nutritional guidance. Gym membership or entry fees are not included and are paid separately. An individual nutrition plan is agreed separately and charged additionally at a price accepted in advance.

The use of recovery electrodes may be available at no additional charge, during or after the training, subject to the trainer's assessment, suitability for the client, the manufacturer's instructions and availability. It is not guaranteed at every training, has no duration guaranteed in advance and does not include an extension of individual supervision. It is used only where the necessary supervision is ensured.

Article 2. Payment, personal nature and validity

The package shall be paid in full no later than at the first training. It is personal and not transferable to another person. It is valid for **35 calendar days from the first training**; the start date and the exact expiry date are recorded and communicated to the client. Unused trainings lapse upon expiry, subject to the exceptions set out in these rules and the application of mandatory statutory rights.

Automatic freezing is not available. In the event of illness or extraordinary circumstances, the trainer may approve an extension on an individual basis. The approval and the new expiry date are recorded in the app or in a written confirmation; until approval is granted, the original deadline applies.

Article 3. Bookings and availability

The client books sessions independently in the Apex app within the previously agreed morning or afternoon schedule. There is no obligation to book two weeks in advance, nor any guarantee of a specific time. The client is responsible for booking and using the available sessions in good time during the validity of the package.

The trainer shall provide sufficient sessions within the agreed part of the day for the package to be used. If the client is unable to complete the package owing to insufficient availability on the trainer's part, the deadline is extended for the use of the remaining trainings. The client's postponement of bookings or failure to use the sessions offered does not in itself extend the deadline.

Article 4. Cancellation and non-attendance

For sessions starting **before 12:00**, cancellation without loss of the training is possible until **20:00 on the previous day**. For sessions **from 12:00 onwards**, cancellation must be made at least **five hours before the start**. A session is cancelled by submitting a cancellation request in the Apex app or by sending a message to the trainer in the app's chat. The time of the request or message as recorded in the app is decisive, not the time of the trainer's reply. All deadlines are calculated according to local time in Croatia.

A training cancelled in good time remains in the package but does not extend its deadline. In the event of late cancellation or non-attendance, one training is counted as used, without any additional fee and without entitlement to a free replacement session, save for a specifically approved exception on grounds of illness or an emergency.

Article 5. Lateness of the client and of the trainer

The client should be ready to warm up at the start of the session. In the event of lateness of less than 30 minutes, the training ends at the originally agreed time and is counted as a full session used. In the event of lateness of 30 minutes or more, the training does not take place and the session is counted as used.

Lateness of the trainer of less than 30 minutes is made up by an extension, if the client is able to stay and this does not shorten the following session, or subsequently by agreement. In the event of lateness of the trainer of 30 minutes or more, the client chooses either a replacement session or the making up of the remaining time, without a training being deducted from the package.

Article 6. Withdrawal, trainer's unavailability and refund

If the client withdraws of their own accord while the trainer is able to provide the agreed service, no contractual refund is granted merely on account of a change of mind; the remaining trainings are available until the package expires. This provision does not exclude the statutory right to unilateral termination, a refund, compensation for damage or other mandatory consumer rights.

Where the trainer cancels a session, the training remains with the client and a replacement is arranged; the deadline is extended if, owing to the cancellation, the training cannot be used in time. If a prolonged unavailability of the trainer prevents the use of the package, the client chooses either an extension with a new expiry date or a refund for the unused trainings: **number of remaining trainings × package price paid ÷ 12**. Trainings already used are not subsequently charged at a higher price.

Article 7. Health information and safe participation

Before the cooperation begins, the client completes a separate health questionnaire and discloses any known complaints, injuries, limitations and recommendations relevant to training. The client reports new symptoms and changes immediately, including pain or discomfort during exercise. The trainer reviews the answers, records relevant adjustments and, where necessary, requests a professional medical assessment before continuing. A medical certificate is not automatically required from every client. These obligations do not exclude the trainer's statutory liability.

Article 8. Minor clients

A parent or legal guardian approves the start of the cooperation, confirms the terms, takes part together with the minor in completing the health questionnaire and provides their own contact details and an additional contact for emergencies. Children under 14 years of age are handed over and collected in person by a parent, guardian or a person authorised in advance. From the age of 14 until the age of 18, arriving and leaving unaccompanied is permitted only with the prior written approval of a parent or guardian; otherwise, collection is arranged. In the event of a delay in collection, the parent informs the trainer, and the child remains under supervision until collected.

Article 9. Communication and conduct

The chat in the Apex app is the official channel for regular communication and arrangements with the trainer. A reply is given within 24 hours at the latest, including at weekends; an immediate reply is not guaranteed. This does not restrict the statutory channels for complaints, nor does it constitute an emergency channel.

The client shall respect the agreed sessions, the premises, other users and the safety instructions. Harassment, threats and dangerous behaviour are prohibited. A breach of the rules is, as a rule, followed by a warning; in the event of a repeated or serious breach, the trainer may terminate the cooperation and, in the event of imminent danger, stop the training immediately. The unused part of the package is refunded according to the calculation set out in Article 6.

Article 10. Complaints, data and acceptance

A written complaint may be submitted at the business premises, by post to the address of the registered office **Trtni 21, Mladenići, Viškovo** or by email to **gabriel@apex-performance.fit**. Complaints are not limited to the chat in the app. Receipt is acknowledged without delay, and a written reply is delivered within 15 days. The health questionnaire and the privacy notice are separate documents; permission for promotional photographs and video recordings is separate and is not a condition for training. Mandatory statutory rights take precedence over these rules.

CONFIRMATION IN THE APP

“I have read and accept the Cooperation rules for individual trainings, version 1.1.”

For a minor, confirmation is given by a parent or guardian. Approval of arriving and leaving unaccompanied from the age of 14 until the age of 18 is recorded as a separate, optional selection.

This translation is provided for convenience only. In the event of any discrepancy between this translation and the Croatian version, the Croatian version shall prevail.